

Estates

1. Discuss the potential risks involved when a paralegal prepares a will as an “independent paralegal” —i.e., without the supervision of an attorney.

-There are a lot of risks if a paralegal prepares a will without an attorney supervising them. The biggest issue is that it could be considered unauthorized practice of law, since creating a will involves legal decisions that only a lawyer is supposed to make. A paralegal isn't allowed to give legal advice, so doing this on their own could get them in trouble. There's also a chance the will could be done incorrectly, like missing requirements or using unclear wording, which could make it invalid. If that happens, it could seriously affect the client and even lead to legal issues for the paralegal. That's why supervision from an attorney is really important.

2. Give the citation to the Florida Statute that provides a suggested form for a living will in Florida.

-The Florida Statute that provides a suggested form for a living will is Florida Statutes § 765.303.

Family Law

3. Describe what is meant by the term “no-fault divorce,” and discuss the difference between “no-fault” jurisdictions and those that require a “showing of fault” for divorce.

-A no fault divorce means that neither person has to prove that the other did something wrong to end the marriage. Instead, they can just say the marriage is irretrievably broken. In no fault states, the court doesn't focus on blame, it just focuses on ending the marriage. In fault based jurisdictions, one spouse has to prove something like cheating, abuse, or abandonment in order to get a divorce. So the main difference is that no fault divorce is simpler and less stressful, while fault based divorce requires proof and can be more complicated.

4. Identify the proper official Florida Family Law Form number for: a. Petition for Dissolution of Marriage with Dependent or Minor Child(ren); b. Joint Petition for Adoption by Stepparent; and c. Petition for Change of Name (Adult)
- A. Florida Supreme Court Approved Family Law Form 12.901(b)(1)
 - B. Florida Supreme Court Approved Family Law Form 12.981(b)(1)
 - C. Florida Supreme Court Approved Family Law Form 12.982(a)

Sources:

<https://www.flcourts.gov/Services/Family-Courts/domestic-relations-court-resources/family-law-forms/Petition-for-Dissolution-of-Marriage-12.901-Forms-A-B3/Petition-for-Dissolution-of-Marriage-with-Dependent-or-Minor-Child-ren>

<https://www.flcourts.gov/Services/Family-Courts/domestic-relations-court-resources/family-law-forms/12.982-Forms-A-G/Petition-for-Change-of-Name-Adult>

<https://www.flcourts.gov/Services/Family-Courts/domestic-relations-court-resources/family-law-forms/12.981-Forms-A1-D2/Joint-Petition-for-Adoption-by-Stepparent>

[Florida Statutes](#)